

TENTATIVE RULING

Audrey L. Kimner
v.
Monterey County, et al.
22CV001220

Defendant State of California's Special Motion to Quash and Order to Show Cause

Hearing Date: July 24, 2026

The hearing scheduled for July 24, 2026, at 8:30 a.m. in Department 14 will consider two matters: (1) Defendant State of California's ("State") motion to quash Plaintiff Audrey L. Kimner's ("Plaintiff") service of summons and complaint [Code Civ. Proc. § 418.10, subd. (a)(1)], and (2) the Court's Order to Show Cause ("OSC") regarding whether monetary sanctions, dismissal, or both should be imposed due to Plaintiff's failure to serve the State with the summons and complaint within three years of the case's start on May 4, 2022 [Code Civ. Proc. §§ 583.210, 583.250].

As explained below, the State's motion to quash is **GRANTED**. Accordingly, this Court lacks personal jurisdiction over the State because Plaintiff failed to effectuate proper service of the summons and complaint on the State.

Furthermore, the OSC is **DISCHARGED** because Plaintiff made a reasonable effort to comply with the service requirements of Code of Civil Procedure¹ section 583.210, and there was no intent to mislead or conceal. Plaintiff is warned that her action must be brought to trial within five years of its initiation on May 4, 2022. [Code Civ. Proc. § 583.310.] If not, dismissal is mandatory upon a motion by any party or the court's own motion. [*Ibid.*]

The Court observes that in Plaintiff's June 17, 2026, filing, she states that she cannot attend the July 24, 2026, hearing because of weekly cancer treatments. She did not provide any alternative dates of availability. If Plaintiff fails to appear on July 24, then the matter is **CONTINUED to August 14, 2026**, at 8:30 a.m. in Department 14.

Preliminary Matters.

A. Plaintiff is Hereby Ordered to Follow Court Rules When Filing Papers.

The Court notes important procedural concerns regarding Plaintiff's submissions. She consistently starts her documents with Judicial Council declaration forms and civil case cover sheets, followed by the actual documents. This approach has significantly hindered the Clerk's ability to process and the Court's ability to review her filings. Plaintiff is ordered to stop this practice immediately. All future filings must be clearly labeled, and the first page must feature a single heading that accurately identifies the document being filed. [*See, e.g.,* Cal. Rules of Court,

¹ Hereinafter, all statutory references are to the Code of Civil Procedure.

rules 2.102-2.111, 3.1110, 3.1113.] The Court has already warned Plaintiff about her improper filings during the June 16, 2026, Case Management Conference (“CMC”): “The Court further informs Plaintiff that her filed documents need to be clearly labeled and any opposition to Defendant’s Motion to Quash will need to be served on Defendant and filed with the Court.” Plaintiff’s failure to comply with these requirements in the future may subject her to monetary or other appropriate sanctions, including striking the filing.

B. The State is Not in Default.

Plaintiff incorrectly asserts the case is “in default.” No default has been entered against the State or any other defendant. A default request submitted on April 29, 2026, was embedded in an improperly labeled declaration, and the Clerk did not act on it. Accordingly, the case is not in default, and the Court may hear this motion.

C. Plaintiff’s Claim of Prior Court Findings.

Nothing in the record corroborates Plaintiff’s claim that the Court previously confirmed proper service on any defendant. Indeed, the record reflects the contrary:

CMC Date	Statement in the Minute Order
November 28, 2023	“Proof of service is not valid.”
June 30, 2024	“No valid proof of service has been filed.”
March 19, 2024	“Discussions held regarding Plaintiff’s failure to file proper proof of service.”
July 9, 2024	“A valid proof of service has not been filed.”
January 7, 2025	“Discussions held regarding service.”
April 8, 2025	“Discussions held regarding service.”
July 22, 2025	“Proof of service has still not been completed pursuant to procedural requirements.”
March 3, 2026	“Discussions held regarding Proof of Service.”
April 21, 2026	“For the purposes of today, the Court does not find that the Defendant, State of California, was properly served with the summons and complaint.” An OSC was issued, and the hearing was set for June 16, 2026.
June 16, 2026	After discussing proof-of-service issues, the Court continued the OSC hearing to follow the State’s motion to quash on July 24, 2026.

Motion to Quash Service of Summons

A. Legal Standard.

A defendant may specially appear to move to quash service for lack of personal jurisdiction. [Code Civ. Proc. § 418.10, subd. (a)(1).] Once the motion is filed, the plaintiff bears the burden of proving valid service by a preponderance of evidence. [*Bolkiah v. Superior Court* (1999) 74 Cal.App.4th 984, 991.] A facially valid proof of service creates a rebuttable presumption that the service was proper. [*Dill v. Berquist Construction Co.* (1994) 24

Cal.App.4th 1426, 1441; see also *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.] However, this may be overcome by contradictory evidence. Actual notice alone is insufficient. [*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390 (a facially valid proof of service is dispelled by evidence showing that facts stated therein are untrue, and service was not accomplished as stated in the proof of service).]

Substantial, not strict, compliance with service statutes is necessary, and these provisions should be interpreted broadly to maintain jurisdiction if the defendant actually received notice. [*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544–545.] A finding of substantial compliance can only be sustained where: (1) the record shows partial or superficial compliance with the requirement on which the objection is based; (2) the service relied upon by the plaintiff provided actual notice to the defendant that a suit was filed and that he needed to defend; and (3) the manner and circumstances of service made it very likely that such notice was received. [*American Express*, 199 Cal.App.4th at 391.] However, actual notice of the action is insufficient unless it complies with the statutory requirements for service. [*See Kappel v. Bartlett* (1988) 200 Cal.App.3d 1457, 1466-1467.]

B. Discussion.

Plaintiff bears the burden to submit prima facie evidence to show that service was proper. This may be accomplished by a valid proof of service, which creates a rebuttable presumption. If she meets her burden, then the burden shifts to the State.

A summons may be served by personal delivery [Code Civ. Proc. § 415.10], substitute service instead of personal delivery [*id.* at subd. (a)], or by mail [Code Civ. Proc. § 415.30, subd. (a)]. Here, Plaintiff submitted a proof of substitute service dated June 4, 2026, stating the summons and complaint were left with an adult at 1323 I Street in Sacramento, and then mailed on May 8, 2026. On its face, the proof of service appears valid. This shifts the burden to the State.

The State's evidence rebuts Plaintiff's claims of proper service. First, 1323 I Street is not a State address, and no evidence shows it houses any State agency. Second, the envelope Plaintiff mailed was addressed instead to 1300 I Street—a completely different location. This contradicts the proof of service and violates section 415.20's requirement that mailing must be to the same address where papers were left. Third, the substituted service was not completed in compliance with the statute due to the mismatched addresses. This evidence is sufficient to rebut the presumption created by Plaintiff's proof of service.

Plaintiff claims, without explanation, that she also effected service by mail. Not so. Section 415.40, subdivision (a), requires two copies of the Notice and Acknowledgment of Receipt, along with a prepaid return envelope. Plaintiff did not do so. Even if Plaintiff followed the proper procedures under section 415.40, the State is correct that it is not obligated to comply with the service-by-mail statute. Following such procedures does not show proper service, absent the State's voluntary return of the notice and acknowledgment of receipt. Since the State did not return the notice and acknowledgment of receipt, Plaintiff cannot rely on service by mail.

Plaintiff raises numerous allegations of misconduct, obstruction, corruption, ADA violations, medical neglect, and retaliation by the State, County, Department of Justice, clerks, and judges. These claims are not material to whether service of summons was properly completed under sections 415.20 or 415.30.

Plaintiff has not met her burden to show valid service under California law. The State has provided sufficient contradictory evidence to overcome any presumption arising from the proof of service. Service was not accomplished, and this Court lacks personal jurisdiction over the State. The motion to quash is **GRANTED**.

OSC

Code of Civil Procedure section 583.210 requires that “the summons and complaint” be served on a defendant within 3 years of the start of the case against that defendant, and there is a 60-day period to file the proof of service. Here, Plaintiff named the State as a defendant when she filed her complaint on May 4, 2022. Interpreted strictly and without any exceptions, the statute gives Defendant until July 3, 2025, to serve the State with the summons and complaint. [Code Civ. Proc. §§ 583.240, 583.250.] More than a year later, and despite 10 CMCs in which the Court told Plaintiff that service had not been completed, Plaintiff still has not properly served the State.

The Court recognizes that the “policy of the dismissal statutes is to promote trial of cases before evidence is lost and memories dim and to protect defendants from being subjected to the annoyance of unmeritorious actions that remain undecided for indefinite periods of time.” [*Davis v. Allstate Ins. Co.* (1989) 217 Cal.App.3d 1229, 1232.] Indeed, the specific purpose behind section 583.210 is to ensure that the defendant receives prompt notice of the action. [*Ibid.*]

However, the Court, in its discretion, **DISCHARGES** the OSC because Plaintiff has made a reasonable attempt to comply with the applicable service statutes in good faith. Nothing on the record reflects that Plaintiff is attempting to mislead or conceal.

Conclusion.

The State’s motion to quash is **GRANTED**. The OSC is **DISCHARGED**.

The State shall prepare and serve on Plaintiff the Proposed Order consistent with this Tentative Ruling.